

UPSC GS-II POLITY

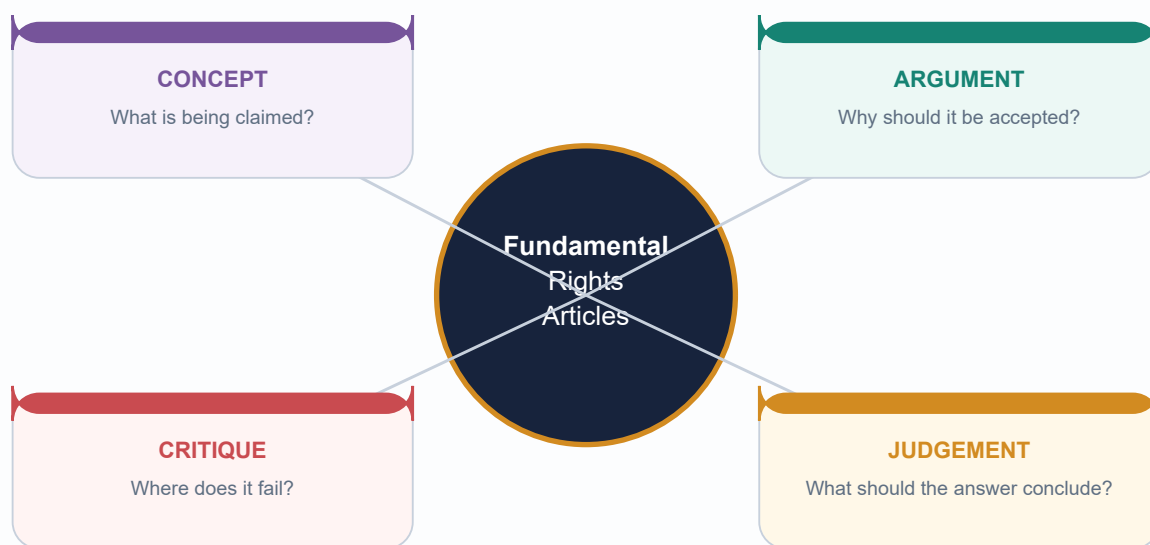
Fundamental Rights — Articles 12 to 35

Integrated Basic + Advanced Course

14 deep-learning modules | Part III's 'Magna Carta of India'

Visual maps, timelines, comparisons, UPSC traps and Mains frameworks

Grounded in M. Laxmikant, Indian Polity (Sixth Revised Edition), Part III + verified official updates



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

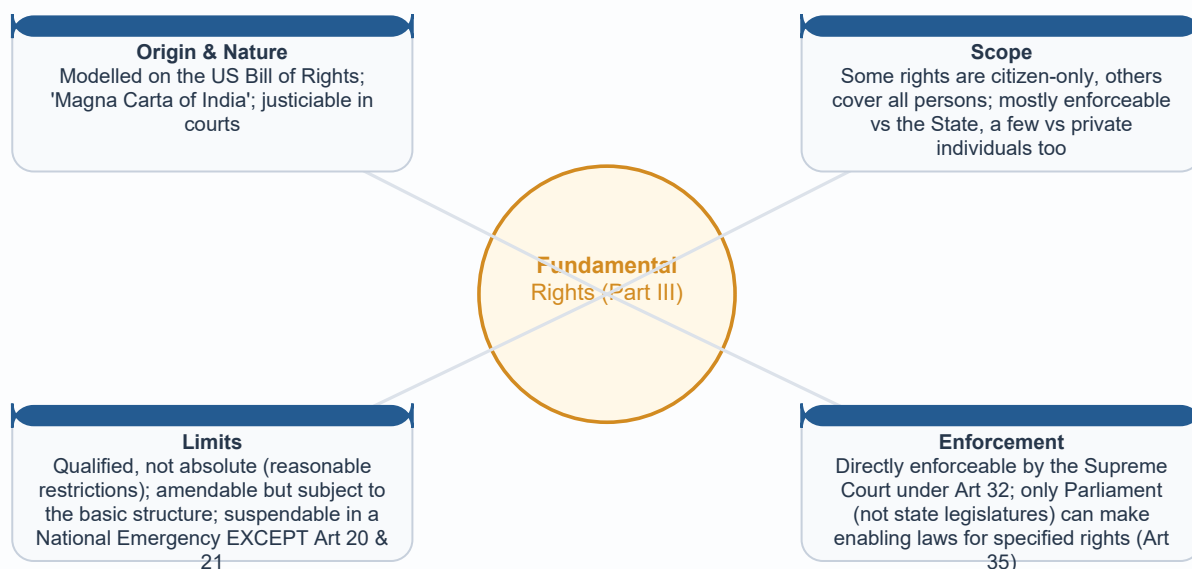
M1. Overview — Part III & the Twelve Features

GS-II Indian
Polity

INTRO & ORIGIN

Fundamental Rights sit in Part III (Articles 12-35), inspired by the US Bill of Rights — Part III is nicknamed the 'Magna Carta of India'. Originally 7 rights; the Right to Property (Art 31) was deleted by the 44th Amendment, 1978, leaving 6 today.

FOUR DEFINING DIMENSIONS OF FUNDAMENTAL RIGHTS



KEY DATA

#	Right	Articles
1	Right to Equality	14-18
2	Right to Freedom	19-22
3	Right against Exploitation	23-24
4	Right to Freedom of Religion	25-28
5	Cultural & Educational Rights	29-30
6	Right to Constitutional Remedies	32

STATIC THEORY

- The 12 characteristic features: (1) some rights citizen-only, some for all persons; (2) qualified, not absolute — courts decide the reasonableness of restrictions; (3) mostly against the State, some against private persons too; (4) some negative, some positive in character; (5) justiciable; (6) directly enforceable by the Supreme Court (Art 32); (7) amendable, but subject to the basic structure doctrine; (8) suspendable in a National Emergency, EXCEPT Articles 20 and 21; (9) scope limited by Articles 31A/31B/31C; (10) restrictable for the armed forces (Art 33); (11) restrictable under martial law (Art 34); (12) some need an enabling law that only Parliament may enact (Art 35).

- The 7th original right — Right to Property (Art 31) — was removed by the 44th Amendment Act, 1978. It survives only as a legal right under Article 300-A (Part XII).

MEMORY HOOK

'E-F-E-R-C-C' — Equality, Freedom, against Exploitation, Religion, Cultural/educational, Constitutional remedies.

MUST-KNOW FACTS

1. Fundamental Rights = Articles 12-35, Part III; nicknamed the 'Magna Carta of India'.
2. Originally 7 rights; now 6 — Right to Property deleted by the 44th Amendment, 1978, and moved to Art 300-A.
3. Article 20 and Article 21 are the **ONLY** Fundamental Rights that can never be suspended during a National Emergency.

MAINS ANGLE

Fundamental Rights as 'limitations on the State' — how the 12 features together aim at 'a government of laws and not of men'.

STUDY LINK**HIGH****M3. Right to Equality I — Article 14** □GS-II Indian
Polity**INTRO & ORIGIN**

Article 14 applies to **ALL** persons — citizens, foreigners, and legal persons alike — and packs two distinct legal concepts into one sentence.

KEY DATA

Concept	Origin	Nature	Core Meaning
Equality BEFORE law	British	Negative	No special privileges for anyone; equal subjection to ordinary law; no one is above the law
Equal PROTECTION of laws	American	Positive	Equal treatment in equal circumstances — like must be treated alike

STATIC THEORY

- Article 14 permits 'reasonable classification' — grouping based on an intelligible differentia that has a rational nexus to the object sought — but forbids 'class legislation'.
- Dicey's Rule of Law has three elements; only the **FIRST TWO** apply to India (the Constitution itself, not just ordinary law, is the source of rights here). Rule of Law is a basic feature.
- Genuine exceptions to Article 14 equality: Art 361 (President/Governor immunities), Art 361-A (protection for true reports of legislative proceedings), Art 105 (MPs), Art 194 (state legislators), Art 31-C ('where 31-C comes in, Art 14 goes out'), foreign sovereigns/diplomats, and the UN and its agencies.

MEMORY HOOK

Equality BEFORE law = British/negative; equal PROTECTION of laws = American/positive.

MUST-KNOW FACTS

1. Article 14 applies to ALL persons, not just citizens.
2. Only the first two of Dicey's three Rule of Law elements apply in India.
3. Reasonable classification needs BOTH an intelligible differentia AND a rational nexus to the object.

UPSC TRAPS

WRONG: Article 14 applies only to citizens.

CORRECT: It applies to ALL persons — citizens, foreigners, and legal persons.

WRONG: All three of Dicey's Rule of Law elements apply fully to India.

CORRECT: Only the first two apply — the Constitution, not ordinary law, is India's source of rights.

HIGH

M4. Right to Equality II — Articles 15 & 16, the Reservation Architecture

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INTRO & ORIGIN

Article 15 bars discrimination against citizens on grounds ONLY of religion, race, caste, sex, or place of birth; Article 16 extends equality to public employment — both carry a carefully layered set of exceptions built up over seven decades of amendments.

KEY DATA

Article	Exceptions
Art 15	(a) special provisions for women & children; (b) for SEBCs/SC/ST; (c) 93rd Amendment (2005) — 27% OBC quota in educational institutions (aided/unaided, except minority institutions), upheld by the SC in 2008 with creamy-layer exclusion; (d) 103rd Amendment (2019) — up to 10% EWS quota
Art 16	(a) Parliament may prescribe a residence requirement for state jobs — now survives only for Andhra Pradesh & Telangana (the 1957 Act expired in 1974); (b) reservation for backward classes; (c) religious-institution offices; (d) EWS 10%

STATIC THEORY

- Creamy-layer exclusions (OBC) also cover: constitutional-post holders; Group A/B officers (and PSU/bank equivalents); Colonel and above in the armed forces; professionals; business/trade income earners; and large landholders.
- EWS (Economically Weaker Sections) criteria: family income below ₹8 lakh AND not owning 5+ acres of agricultural land, a 1,000+ sq ft flat, a 100+ sq yd plot in a notified municipality, or a 200+ sq yd plot elsewhere.

MEMORY HOOK

Creamy-layer ceiling climbed: ₹1L (1993) → ₹2.5L (2004) → ₹4.5L (2008) → ₹6L (2013) → ₹8L (2017).

MUST-KNOW FACTS

- 1. The Art 16 residence exception now survives only for Andhra Pradesh and Telangana.
- 2. 93rd Amendment (2005): 27% OBC quota in educational institutions, upheld by the SC in 2008 subject to creamy-layer exclusion.
- 3. 103rd Amendment (2019): up to 10% EWS reservation, added under both Art 15 and Art 16.

UPSC TRAPS

WRONG: The Art 16 residence exception applies across most states.

CORRECT: It now survives only for Andhra Pradesh and Telangana — the original 1957 Act expired in 1974.

HIGH

M5. Mandal Commission & the Indra Sawhney Case

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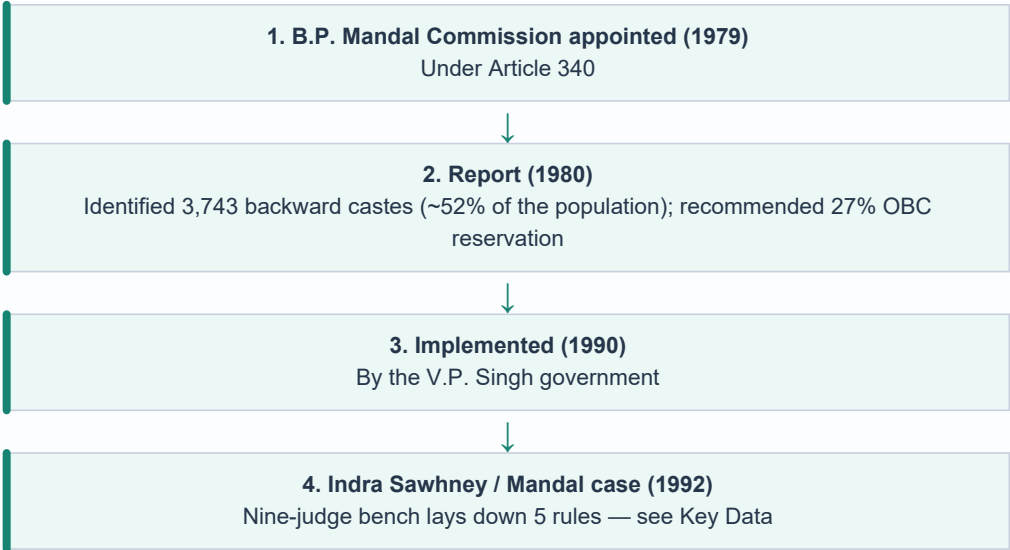
INTRO & ORIGIN

The single most litigated reservation dispute in Indian constitutional history — Mandal's 27% OBC recommendation, and the nine-judge bench that fixed the rules that still govern reservation today.

KEY DATA

Amendment	Year	What It Overrode/Added
77th Amendment	1995	Allows reservation in PROMOTIONS for SC/ST (overriding Indra Sawhney's bar)
81st Amendment	2000	Treats unfilled backlog vacancies as a separate class (not counted in the year's 50% ceiling)
85th Amendment	2001	Consequential seniority for SC/ST after promotion (retrospective from June 1995)
102nd Amendment	2018	Gives the NCBC (National Commission for Backward Classes) constitutional status under Art 338-B

FROM MANDAL COMMISSION TO INDRA SAWHNEY



STATIC THEORY

- Indra Sawhney (1992) laid down five key rules: (a) exclude the creamy layer; (b) no reservation in promotions (only for direct recruitment, for 5 years); (c) total reservation must stay within 50%, except in extraordinary situations; (d) carry-forward of unfilled vacancies is valid, but must remain within the 50% ceiling; (e) a permanent statutory body should examine backward-class complaints.

- Tamil Nadu's 69% reservation law was specially placed in the Ninth Schedule in 1994 to shield it from review.

MEMORY HOOK

Indra Sawhney: creamy layer OUT, promotions NO, ceiling 50%.

MUST-KNOW FACTS

1. Mandal Commission (1979-80) found ~52% of the population backward and recommended 27% OBC reservation, implemented in 1990.
2. Indra Sawhney (1992) capped total reservation at 50% (except extraordinary cases) and initially barred reservation in promotions.
3. The 77th, 81st, 85th, and 102nd Amendments each modified or overrode a specific Indra Sawhney rule.

UPSC TRAPS

WRONG: Reservation in promotion under Article 16(4A) is a fundamental right of the beneficiary class.

CORRECT: It is an **ENABLING** power for the State, not an enforceable right by itself.

HIGH

M7. Right to Freedom — Article 19's Six Freedoms □

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Polity

INTRO & ORIGIN

Article 19 is available **ONLY** to citizens and **ONLY** against the State — originally seven freedoms, now six after the Right to Property (clause (g)) was deleted by the 44th Amendment, 1978.

KEY DATA

Freedom	Key Scope & Restriction Grounds
(a) Speech & expression	Includes propagating own/others' views, freedom of the press, commercial ads, right against phone-tapping, right to telecast, right against bandhs, right to know, freedom of silence, right against pre-censorship. Restriction grounds: sovereignty & integrity, security of the State, friendly foreign relations, public order, decency/morality, contempt of court, defamation, incitement to an offence.
(b) Assembly	Peaceful, unarmed, on public land; does NOT cover a strike. Restrictions: sovereignty/integrity, public order (book cites CrPC Sec 144 / IPC Sec 141; from 1 July 2024 the operative provisions are the corresponding sections of the BNSS, 2023 and BNS, 2023).
(c) Association	Includes a negative right — NOT to join an association; recognition of an association is not itself a Fundamental Right; no guaranteed right to strike or lock-out.
(d) Movement	Internal movement only (the external/travel-abroad dimension falls under Art 21, not Art 19); restricted for public interest and Scheduled Tribe protection.
(e) Residence	Right to reside (temporary) and settle (permanent) anywhere; restricted in Scheduled Tribe areas.
(f) Profession	Excludes immoral/dangerous trades; the State may prescribe qualifications and run its own monopolies without needing to justify them as 'reasonable restrictions'.

MEMORY HOOK

Art 19 = citizens only, vs State only — 6 freedoms since 1978 (property clause deleted).

MUST-KNOW FACTS

- Article 19 protects citizens only, and only against State action.
- The right to travel abroad and external movement fall under Article 21, NOT Article 19's freedom of movement.
- From 1 July 2024, CrPC Sec 144 / IPC Sec 141 references are superseded by the corresponding BNSS, 2023 / BNS, 2023 provisions.

UPSC TRAPS

WRONG: Article 19 protects the right to travel abroad.

CORRECT: That right falls under Article 21 (personal liberty), not Article 19's freedom of movement.

WRONG: Association under Art 19(1)(c) guarantees a right to strike.

CORRECT: There is no guaranteed right to strike or lock-out under this Article.

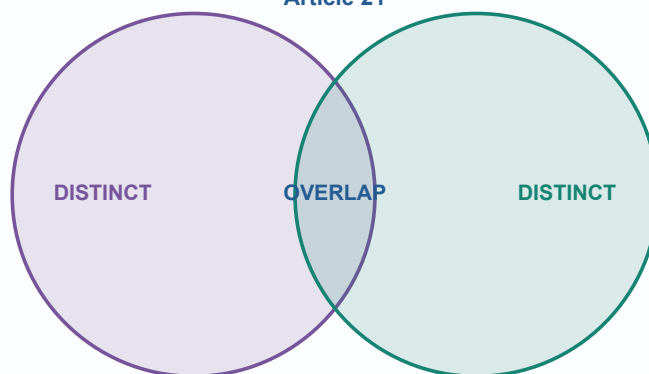
HIGH

M8. Articles 20 & 21 — From Gopalan to Maneka Gandhi □□

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INTRO & ORIGIN

Article 21's meaning was transformed by one 1978 judgment — from a narrow textual reading to the foundation of nearly every modern Indian civil-liberties case.

A.K. GOPALAN (1950) VS MANEKA GANDHI (1978)**A.K. Gopalan (1950)****Article 21****Maneka Gandhi (1978)****A.K. Gopalan (1950)**

- Narrow interpretation
- Protects only against arbitrary EXECUTIVE action
- 'Procedure established by law' read literally

Article 21

- Text of Article 21 unchanged
- 'Life & personal liberty' is the core guarantee

Maneka Gandhi (1978)

- Wide interpretation
- Procedure must be fair, just and reasonable (imports 'due process')
- Protects against EXECUTIVE and LEGISLATIVE action; 'life' = living with human dignity

Maneka Gandhi (1978) overturned Gopalan's narrow reading and built the 'golden triangle' of Articles 14, 19 and 21.

KEY DATA

Article 20 Protection	Key Scope
(a) No ex-post-facto law	Criminal law only (not civil/tax); bars conviction under a later law, not the trial itself; does not apply to preventive detention
(b) No double jeopardy	Applies only to prosecution/punishment before a court or judicial tribunal, not a departmental proceeding
(c) No self-incrimination	Covers oral and documentary evidence only — NOT thumb impressions, specimen signatures, blood samples, or body exhibition; applies to criminal proceedings only

STATIC THEORY

- SC-declared Article 21 rights (illustrative, not exhaustive): dignity, clean environment, livelihood, privacy, shelter, health, free legal aid, speedy trial, against handcuffing, against solitary confinement, travel abroad, against bonded labour, information, reputation, sleep, against noise pollution, and sustainable development.
- Articles 20 and 21 are the ONLY Fundamental Rights that can NEVER be suspended during a National Emergency.

MEMORY HOOK

Gopalan = narrow, executive-only; Maneka = wide, 'due process' through the back door.

MUST-KNOW FACTS

1. Maneka Gandhi (1978) requires Art 21 procedure to be fair, just, and reasonable — effectively importing 'due process'.
2. Article 20 and Article 21 are never suspended, even during a National Emergency.
3. Self-incrimination protection (Art 20(c)) does not cover thumb impressions, blood samples, or specimen signatures.

UPSC TRAPS

WRONG: Article 21 has always meant 'due process' since 1950.

CORRECT: Gopalan (1950) read it narrowly; Maneka Gandhi (1978) introduced the wide, 'due process'-like reading.

WRONG: All Fundamental Rights are suspended during a National Emergency.

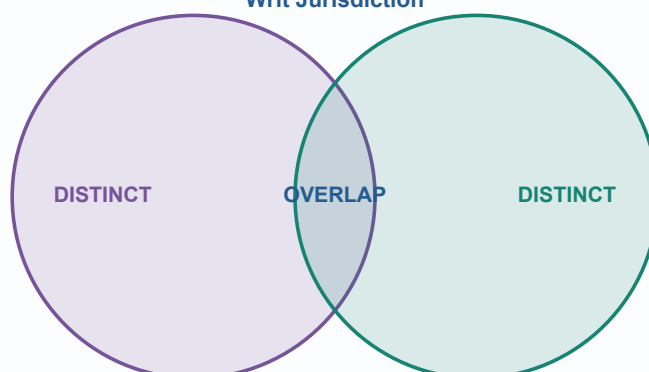
CORRECT: Articles 20 and 21 are NEVER suspended; Article 19 is suspended only during an external emergency.

MAINS ANGLE

Judicial expansion of Article 21 — from Gopalan to Maneka to Puttaswamy — is best framed as 'due process' entering Indian constitutional law through interpretation, not amendment.

STUDY LINK**HIGH****M12. Article 32 — 'Heart and Soul' & the Five Writs** □ □GS-II Indian
Polity**INTRO & ORIGIN**

Ambedkar called Article 32 the 'heart and soul' of the Constitution — it is itself a Fundamental Right, giving the Supreme Court a direct, non-discretionary duty to enforce every other Fundamental Right through five borrowed English writs.

ARTICLE 32 (SUPREME COURT) VS ARTICLE 226 (HIGH COURT)**Article 32 (Supreme Court)****Writ Jurisdiction****Article 226 (High Court)****Article 32 (Supreme Court)**

- Enforces Fundamental Rights ONLY
- Jurisdiction throughout India
- Itself a Fundamental Right — SC CANNOT refuse to hear it

Writ Jurisdiction

- Same 5 writs available
- Borrowed from English 'prerogative writs'

Article 226 (High Court)

- Enforces FRs AND any other legal right — WIDER scope
- Limited to its own territorial jurisdiction / where the cause of action arose
- Discretionary remedy — HC may decline to intervene

SC's Art 32 jurisdiction is original but NOT exclusive — concurrent with HC's wider Art 226 jurisdiction.

KEY DATA

Writ	Meaning	Key Scope
Habeas Corpus	'Have the body'	Against public AND private detention; not available if detention is lawful, for contempt, by a competent court, or outside jurisdiction
Mandamus	'We command'	Against a public official/body to perform a public duty; NOT against private parties, discretionary duties, contractual duties, the President/Governor, or a Chief Justice acting judicially
Prohibition	'To forbid'	Higher court to lower court, PREVENTIVE only; only against judicial/quasi-judicial bodies — not administrative, legislative, or private bodies
Certiorari	'To be certified'	To transfer/quash a case or order; both PREVENTIVE and CURATIVE; since 1991 also available against administrative authorities
Quo-Warranto	'By what authority'	Tests the legality of a claim to a public office (only a substantive statutory/constitutional office); ANY interested person may seek it

MEMORY HOOK

Art 32 = 'heart and soul' (Ambedkar) — a Fundamental Right the SC cannot refuse to hear.

MUST-KNOW FACTS

- Article 32 is itself a Fundamental Right — the Supreme Court cannot refuse to entertain it, unlike the discretionary Article 226.
- SC's writ jurisdiction (Art 32) covers only Fundamental Rights; HC's (Art 226) covers FRs plus any other legal right.
- Certiorari has been available against administrative (not just judicial/quasi-judicial) authorities since 1991.

UPSC TRAPS

WRONG: Certiorari lies only against judicial or quasi-judicial bodies.

CORRECT: Since 1991, it is also available against administrative authorities.

WRONG: The Supreme Court's writ jurisdiction under Article 32 is wider than the High Court's under Article 226.

CORRECT: It is narrower in subject matter (FRs only) — Article 226 additionally covers any other legal right.

HIGH

M14. Landmark Judgments, the Places of Worship Act & a Verified PYQ □□□

GS-II Indian Polity

NEWS TRIGGER

Verified 2024 GS-II Mains question (15 marks, 250 words): 'Right to privacy is intrinsic to life and personal liberty and is inherently protected under Article 21 of the Constitution. Explain. In this reference discuss the law relating to DNA testing of child in the womb to establish its paternity.' Route: Puttaswamy privacy/dignity/autonomy -> legality, legitimate aim, proportionality -> Evidence Act legitimacy presumption and best interests of the child -> DNA testing only on strong prima facie need, not a routine roving inquiry.

INTRO & ORIGIN

These cases expand Fundamental Rights through dignity, equality, speech, privacy/autonomy and workplace safety — rather than creating new textual Articles. UPSC usually tests the Article + holding pair, not extended facts.

KEY DATA

Case	Year	Article(s)	Holding
Maneka Gandhi v. Union of India	1978	Arts 14, 19, 21	Art 21 procedure must be just, fair and reasonable; the 'golden triangle' links equality, freedoms, and liberty
Indian Young Lawyers Association (Sabarimala)	2018	Arts 14, 25, 26	Exclusion of women tested against equality, essential religious practice, and constitutional morality
Shreya Singhal v. Union of India	2015	Art 19(1)(a), 19(2)	Struck down Sec 66A, IT Act as vague/overbroad and outside reasonable speech restrictions
Navtej Singh Johar v. Union of India	2018	Arts 14, 15, 21	Read down Sec 377 IPC for consensual adult same-sex relations; dignity and autonomy protected
Vishaka v. State of Rajasthan	1997	Arts 14, 19(1)(g), 21	Laid down workplace sexual-harassment guidelines pending legislation; dignity and safe workplace linked to FRs
Property Owners Association v. State of Maharashtra	2024	Arts 31C, 39(b)	Confirmed the unamended Art 31C survives for laws genuinely implementing Art 39(b)/(c); some private resources may qualify under Art 39(b), but not every privately owned asset does

STATIC THEORY

- Places of Worship Act, 1991: Section 3 bars converting the religious character of a place of worship from one denomination/section to another. Section 4 freezes every place of worship's religious character as it existed on 15 August 1947, and abates pending suits subject to exceptions. Section 5 expressly excludes the Ayodhya Ram Janmabhoomi-Babri Masjid dispute from the Act's operation.

- Status checked 21 Jul 2026: constitutional challenges to the Places of Worship Act remain pending before the Supreme Court; no final judgment striking down the Act was located on the Court's official portal as of that check.

MEMORY HOOK

Ayodhya is an EXPRESS statutory exception (Sec 5) — do not generalise its 2019 outcome to other disputed sites.

MUST-KNOW FACTS

- 1. These landmark cases are Fundamental Rights expansions/interpretations, NOT DPSP cases — a recurring trap.
- 2. Property Owners Association (2024) requires a context-specific Art 39(b) inquiry — not every privately owned asset counts as a 'material resource of the community'.
- 3. The Places of Worship Act, 1991 freezes religious character as of 15 August 1947, with Ayodhya expressly excluded.

UPSC TRAPS

WRONG: Maneka Gandhi, Sabarimala, Navtej Johar, and Vishaka are Directive Principles (DPSP) cases.

CORRECT: They are all Fundamental Rights expansions/interpretations under Part III.

WRONG: Every privately owned asset qualifies as a 'material resource of the community' under Art 39(b).

CORRECT: Property Owners Association (2024) requires a context-specific inquiry — not an automatic classification.

WRONG: The Ayodhya dispute outcome (2019) generalises to all other religious-site disputes.

CORRECT: Ayodhya is an EXPRESS statutory exception under Section 5 of the Places of Worship Act, 1991.

MAINS ANGLE

Reservation jurisprudence (50% ceiling, creamy layer, caste-to-economic criteria via EWS) and the judicial expansion of Article 21 together illustrate how Fundamental Rights evolve through interpretation as much as through amendment.

STUDY LINK

This module's citizen-only rights bundle (Art 15, 16, 19, 29, 30) builds directly on the Citizenship Session-Level PDF's Module 1 (Citizen vs Alien).

MEDIUM UPSC RELEVANCE

MEDIUM

M2. Article 12-13 — Defining 'State' & Judicial Review

GS-II Indian Polity

INTRO & ORIGIN

Before any Fundamental Right can be enforced, two threshold questions must be answered: who counts as 'the State', and what happens to a law that violates a Right?

KEY DATA

Point	Pre-Constitution Law	Post-Constitution Law
Effect of FR conflict	Dormant/'eclipsed' to the extent of inconsistency	Void to the extent of inconsistency
Revival	Possible if the FR shadow is later removed	Not automatic — generally void ab initio

FROM 'STATE' TO JUDICIAL REVIEW

1. Article 12 defines 'State'

Government & Parliament of India; government & legislatures of states; all local authorities (municipalities, panchayats, district boards); 'other authorities' — statutory/non-statutory bodies such as LIC, ONGC

**2. Article 13(1) & (2)**

Any law inconsistent with Fundamental Rights is VOID — this establishes judicial review

**3. 'Law' is defined widely**

Includes ordinances, orders, bye-laws, rules, regulations, notifications, custom, or usage

**4. Constitutional amendments excluded**

Kesavananda Bharati (1973): Art 13 does NOT cover constitutional amendments — but they must not violate the basic structure

STATIC THEORY

- Doctrine of Eclipse (Article 13): Bhikaji Narain Dhakras (1955) held that an inconsistent PRE-Constitution law is not dead — it is dormant, or 'eclipsed'.
- If the relevant Fundamental Rights restriction is later removed or amended, the eclipse disappears and the old law can revive WITHOUT fresh re-enactment.
- This revival logic applies mainly to pre-Constitution laws; post-Constitution laws that violate a Fundamental Right are generally void from the start (ab initio).

MEMORY HOOK

Eclipse = 'temporarily unenforceable' — NOT 'repealed'.

MUST-KNOW FACTS

1. Article 12's 'other authorities' brings statutory/non-statutory public bodies like LIC and ONGC within the definition of 'State'.
2. Article 13's definition of 'law' is wide — covers ordinances, bye-laws, custom, and usage, not just statutes.
3. Kesavananda Bharati (1973): constitutional amendments are outside Article 13, but cannot damage the basic structure.

UPSC TRAPS

WRONG: The Doctrine of Eclipse means a law is permanently repealed.

CORRECT: It means the law is dormant/unenforceable while the conflict lasts — it can revive if the conflict is removed.

MEDIUM

M6. Articles 17 & 18 — Untouchability and Titles

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Polity

INTRO & ORIGIN

Two short but distinctive Articles: one abolishes a centuries-old social practice and is enforceable against private individuals; the other bars the State (and citizens) from creating or accepting titles of nobility.

KEY DATA

Article	Provision
Art 17	Abolishes untouchability; practice is punishable under the Protection of Civil Rights Act, 1955 (renamed 1976). The term 'untouchability' is undefined in the Constitution — Mysore HC read it as the historical caste-based practice, not a literal reading. Enforceable against PRIVATE individuals.
Art 18	(a) State cannot confer titles except military/academic; (b) citizens cannot accept foreign titles; (c)/(d) office-holders need the President's consent to accept foreign titles or gifts. National Awards case (1996): Bharat Ratna/Padma awards are NOT 'titles' — valid, but cannot be used as a prefix/suffix to a name, else forfeited.

STATIC THEORY

- National Awards (Bharat Ratna, Padma awards) were instituted in 1954, discontinued in 1977 (Morarji Desai government), and revived in 1980 (Indira Gandhi government).

MEMORY HOOK

Art 17 = enforceable against private persons too (rare among Fundamental Rights).

MUST-KNOW FACTS

1. Article 17 is one of the few Fundamental Rights directly enforceable against private individuals.
2. The National Awards case (1996) held Bharat Ratna/Padma awards are not 'titles' under Art 18, but recipients cannot use them as a name prefix or suffix.

MEDIUM

M9. Article 21A (Right to Education) & Article 22 (Arrest Protections)

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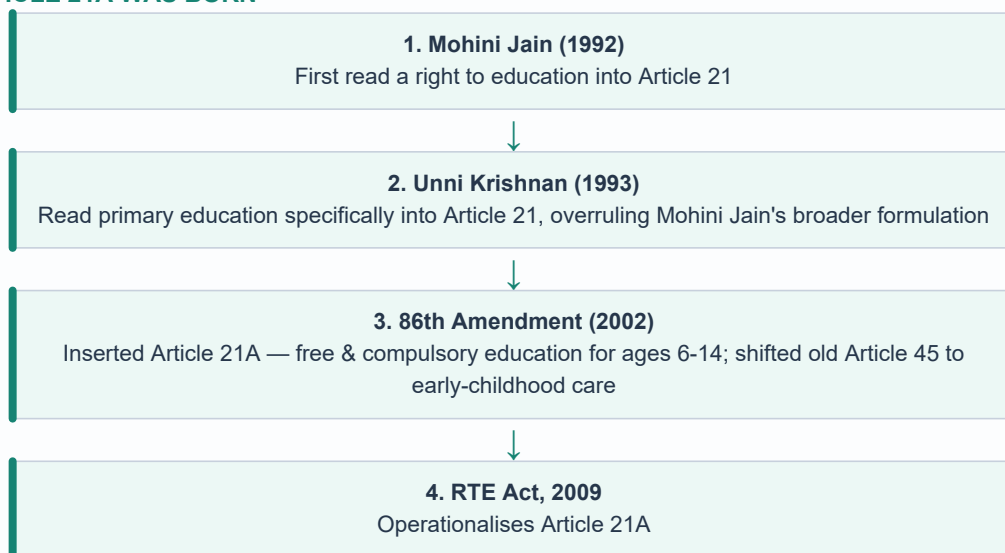
INTRO & ORIGIN

Two protections that grew out of Article 21's expansion: a positive right to education, and a detailed procedural shield against arbitrary arrest and detention.

KEY DATA

Article 22	Key Rule
Ordinary law (Part 1)	Grounds of arrest must be told; right to consult a lawyer; produced before a magistrate within 24 hours; released after 24 hours unless the period is extended (not available to enemy aliens or those under preventive detention)
Preventive detention (Part 2)	Detention up to 3 months unless an Advisory Board (of HC judges) approves further detention; grounds must be communicated (except public-interest facts); a representation opportunity must be given
44th Amendment (1978)	Sought to cut the 3-month limit to 2 months, but this provision was NEVER brought into force — the 3-month limit still stands

HOW ARTICLE 21A WAS BORN



MEMORY HOOK

44th Amendment's 2-month cut was NEVER enforced — 3 months still stands for preventive detention.

MUST-KNOW FACTS

1. Unni Krishnan (1993) read primary education into Article 21, overruling the broader Mohini Jain (1992) formulation.
2. The 86th Amendment (2002) added Article 21A for free and compulsory education, ages 6-14.
3. Preventive detention beyond 3 months needs Advisory Board (HC judges) approval — the 44th Amendment's 2-month cut was never enforced.

UPSC TRAPS

WRONG: Preventive detention is now capped at 2 months after the 44th Amendment.

CORRECT: That provision was never brought into force — the original 3-month cap still applies.

MEDIUM

M10. Right against Exploitation — Articles 23 & 24

GS-II Indian Polity

INTRO & ORIGIN

These two Articles reach beyond the State to bind private individuals directly — aimed squarely at trafficking, forced labour, and child labour.

KEY DATA

Article	Provision
Art 23	Bars trafficking in human beings, begar, and forced labour (including bonded labour, devadasi practice, and slavery); enforceable against the STATE and PRIVATE persons; applies to all persons. 'Force' includes economic compulsion — e.g. working below minimum wage. Laws: Immoral Traffic (Prevention) Act 1956; Bonded Labour System (Abolition) Act 1976; Minimum Wages Act 1948. Exception: State may impose compulsory service for public purposes (e.g. military/social service) without discrimination.
Art 24	Bars employment of children below 14 years in a factory, mine, or other hazardous work (harmless work is not barred). Laws: Child Labour (Prohibition & Regulation) Act 1986, renamed the Child and Adolescent Labour... Act by a 2016 amendment; Commissions for Protection of Child Rights Act, 2005.

STATIC THEORY

- The Supreme Court (1996) directed a ₹20,000 fine per child employed in violation of Article 24, to be deposited in a Child Labour Rehabilitation Welfare Fund.

MEMORY HOOK

Art 23 & 24 both bind PRIVATE persons directly — not just the State.

MUST-KNOW FACTS

1. 'Force' under Article 23 includes economic compulsion, such as paying below the minimum wage.
2. Article 24's bar covers children below 14 in factories, mines, or hazardous work — harmless work is not barred.

MEDIUM

M11. Freedom of Religion (Art 25-28) & Cultural/Educational Rights (Art 29-30)

GS-II Indian
Polity

INTRO & ORIGIN

Four Articles govern religious freedom for individuals and denominations, followed by two Articles that protect minorities' cultural, linguistic, and institutional interests.

KEY DATA

Article	Key Rule
Art 25	Freedom of conscience + right to profess, practise, propagate one's religion (all persons). Propagation does NOT include a right to CONVERT others (forcible conversion violates their conscience). Subject to public order, morality, health, and other Fundamental Rights. Explanations: kirpans are included for Sikhs; 'Hindus' includes Sikhs, Jains, Buddhists for this Article.
Art 26	Denominations may establish/maintain institutions, manage religious affairs, and own/administer property. Subject to public order/morality/health only — NOT to other Fundamental Rights. Denomination test (SC): common belief system + common organisation + distinctive name. Ramakrishna Mission and Ananda Marga ARE denominations (within Hinduism); Aurobindo Society is NOT a religious denomination.
Art 27	Bars TAXES (not fees) for promoting/maintaining a particular religion; fees for regulating secular administration or pilgrim services remain valid.
Art 28	Four institution types: wholly State-maintained (religious instruction PROHIBITED); State-administered but trust-established (PERMITTED); State-recognised and State-aided (permitted only VOLUNTARILY, with consent).
Art 29	Any 'section of citizens' with a distinct language/script/culture may conserve it; no denial of admission to a State/State-aided institution on grounds ONLY of religion/race/caste/language. SC: scope is not limited to minorities — 'section of citizens' can mean a minority OR a majority.
Art 30	Only MINORITIES (religious or linguistic; 'minority' is undefined) may establish and administer educational institutions; entitled to fair compensation on acquisition (44th Amendment); no discrimination in State aid. Malankara Syrian Catholic College (2007): the right includes choosing the governing body, staff, students, and fees, but NOT a right to maladminister — reasonable regulatory measures remain valid.

MEMORY HOOK

Art 27 bars only TAXES, not fees; Art 30 is minorities-only, Art 29 is not.

MUST-KNOW FACTS

1. The right to propagate religion (Art 25) does not include a right to convert others by force or inducement.
2. Article 26's rights are subject only to public order/morality/health — NOT to other Fundamental Rights (unlike Article 25).
3. Article 30 is available only to minorities; Article 29 is available to any 'section of citizens', minority or majority.

UPSC TRAPS

WRONG: The right to propagate religion under Article 25 includes the right to convert others.

CORRECT: It does not — forcible or induced conversion violates others' freedom of conscience.

WRONG: Article 27 bars the State from charging any religious fee.

CORRECT: It bars only TAXES for promoting a religion; regulatory/secular fees remain valid.

MEDIUM

M13. Articles 33, 34 & 35 — Armed Forces, Martial Law & Enabling Laws

GS-II Indian Polity

INTRO & ORIGIN

The final trio of 'special situation' Articles in Part III — restricting rights for disciplined forces, during martial law, and reserving certain legislative powers to Parliament alone.

KEY DATA

	Martial Law	National Emergency
What it affects	Only Fundamental Rights	FRs + Centre-state relations, revenue, legislative powers, Parliament's tenure
Government & courts	Suspends ordinary government & courts	Both continue functioning
Trigger	Breakdown of law & order (any reason)	Only war, external aggression, or armed rebellion
Area affected	A specific area	Whole country or a part of it
Constitutional basis	Implicit — no express provision	Explicit and detailed

STATIC THEORY

- Article 33: only PARLIAMENT (not state legislatures) may restrict or abrogate the Fundamental Rights of members of the armed forces, para-military forces, police, or intelligence agencies (via laws such as the Army/Navy/Air Force Acts, 1950, and the Police Forces (Restriction of Rights) Act, 1966); this can even exclude court-martial decisions from writ jurisdiction. It covers non-combatant staff (cooks, barbers, etc.) too.
- Article 34: restricts Fundamental Rights while martial law is in force in any area; Parliament may indemnify actions taken or validate sentences passed under martial law. 'Martial law' itself is undefined (borrowed from English common law) — its basis in Art 34 is implicit, not express. The Supreme Court has held martial law does NOT ipso facto suspend the writ of habeas corpus.
- Article 35: only Parliament — not state legislatures — may legislate on certain specified Fundamental Rights matters, to ensure uniform application across India.

MEMORY HOOK

Martial Law = only FRs suspended, courts also suspended; National Emergency = FRs + federal structure, courts continue.

MUST-KNOW FACTS

1. Article 33 restrictions apply to non-combatant staff of the armed forces too (cooks, barbers, etc.), not just combat personnel.
2. Martial law does not automatically suspend the writ of habeas corpus, per Supreme Court rulings.
3. Article 35 reserves certain Fundamental Rights legislation exclusively to Parliament, for uniformity.